

22STCV32233 22STCV32233

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Case Number: 22STCV32233 Hearing Date: August 19, 2026 Dept: M

CASE NAME: De La Torre,
et al., v. Arandia, et al.

CASE NO.: 22STCV32233

MOTION: Motion
to Quash Subpoena

HEARING DATE: 8/19/2026

Legal
Standard

CCP section 1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (CCP § 1987.1(a).) "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Id.)

As a general rule, all unprivileged
information that is relevant to the subject matter of the action is

discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (CCP § 2017.010; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.) Information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.)

Subpoenas which seek consumer records, including personal financial information, must adhere to additional procedural requirements laid out in CCP § 1985.3. The subpoena must first be served on the consumer at least five days before it is served on the nonparty from whom records are sought (with a five-day extension if served by mail, pursuant to CCP § 1013). (CCP, § 1985.3(b)(3).) A subpoena must be served on the custodian of records at least fifteen days before the date upon which records are to be produced, plus any statutory extensions. (Id., §§ 1985.3(d), 2020.410(c).) CCP section 2025.410(c) requires that a motion to quash a deposition notice must be accompanied by a meet and confer declaration.

ANALYSIS

Defendants Bret Hankey and Jamie Olguin (“Defendants”) and Non-Parties Jazelle Fernandez and Sophia Hankey move for an order quashing two non-party deposition subpoenas issued by Plaintiffs Susana De La Torre, Martha Quinonez, and Lola De La Torre-Quinonez. Specifically: 1) a July 7, 2026, notice of deposition and deposition subpoena directed to “Giselle

Fernandez” (apparently referencing Fernandez) for a deposition at Plaintiffs’ counsel’s firm, located at 1150 S. Olive Street, Suite 1300, Los Angeles, CA 90015 on July 27, 2026, at 2:00 p.m.; and 2) a July 7, 2026, notice of deposition and deposition subpoena directed to non-party

Sophia Hankey, the minor daughter of Defendant Bret Hankey, purporting to give notice of Plaintiffs’ intent to take the witness’s deposition in-person at Plaintiffs’ counsel’s firm, located at 1150 S. Olive Street, Suite 1300, Los Angeles, CA 90015 on July 27, 2026, at 10:00 a.m. Defendants/Non-Parties seek an award of \$5,000 in monetary sanctions against Plaintiffs’ counsel, El Dabe Ritter Trial Lawyers.

This suit arises from a May 2022 motor

vehicle collision resulting in the death of decedent Erne De La Torre Santiago. The collision occurred when Defendant Jennifer Arandia's car struck Mr. Santiago. Arandia is an employee of Mr. Hankey working as his live-in housekeeper. At the time of the collision, Arandia was transporting the cat "Chicken" back to Hankey's Malibu home, where the cat had been living after Mr. Hankey and his girlfriend Olguin's breakup a month prior. Arandia had been caring for the cat at her home the weekend prior to the collision, since no one was at Mr. Hankey's home to care for it.

Plaintiff

relies on a respondeat superior theory against Mr. Hankey and Ms. Olguin. Plaintiff seeks to establish that Jennifer Arianda was acted in course and scope of her employment with Mr. Hankey during the May 2022 drive when the collision occurred via the "special errand" exception to the going-and-coming rule. "An employee coming from his home or returning to it on a special errand either as part of his regular duties or at a specific order or request of his employer ... is considered to be in the scope of his employment from the time that he starts on the errand until he has returned or until he deviates therefrom for personal reasons." (Jeerwarat v. Warner Brothers Entertainment, Inc. (2009) 177 Cal.App.4th 427, 436; see Sumrall v. Modern Alloys, Inc. (2017) 10 Cal.App.5th 961, 967-968 [an employee is not generally acting within the course and scope of employment when commuting to or from the workplace at the beginning or end of a work day].)

The Court does not find good cause

for the deposition of Ms. Fernandez. Fernandez lives with her aunt, Desirea Rios, who is employed by Mr. Hankey as the nanny to his daughter Sophia Hankey. (Fernandez Decl., ¶¶ 2-8.) Ms. Fernandez was not present at the scene of the incident, she was only 15 years old at the time, and has no knowledge about the terms of Arandia's employment as Hankey's housekeeper. (Id.) She has visited the Hankey residence on a few occasions over the last several years and she does not recall going to the Hankey residence prior to 2024. (Id., ¶ 5.) She disclaims ever seeing a cat at the Hankey residence, and does not know who might have owned or was tasked with caring for any cat at Mr. Hankey's residence. (Id., ¶ 6.) She disclaims any knowledge about Arandia's transportation of the cat in May 2022. (Id.) The Court finds it extremely unlikely that Ms. Fernandez will have first-hand information regarding Jennifer Ariandia's employment with Mr. Hankey generally, or her transportation of Chicken in May 2022 specifically. Plaintiffs proffer no specific evidence concerning Fernandez's relevant knowledge. At best, Plaintiffs assert that Rios brought the Hankey's family dog to her

personal residence on two occasions for “a couple of hours” so that her family (including Ms. Fernandez) could play with the dog, and thus might know about Mr. Hankey’s “custom and practice” of using staff for pet care. (Vargas Decl., ¶ 8, Ex. C at 90:15-91:18, 98:2-21.) Of course, the mere fact that Ms. Fernandez interacted with one of Mr. Hankey’s family pets (and not Olguin’s cat) does not suggest that Ms. Fernandez will know whether Jennifer Arandia was taking care of Chicken in May 2022 pursuant to Mr. Hankey’s request or as part of her normal duties. Ms. Fernandez also explains that she would be prejudiced by attending the deposition, since she does not have a car, would have to arrange for transportation, and miss college classes. (Fernandez Decl., ¶7.) Thus, the burden, expense, or intrusiveness of Ms. Fernandez’s depositions clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (CCP §2017.020(a).)

However, the Court finds good cause for the deposition of Sophia Hankey. As noted, the central issue as to Mr. Hankey and Ms. Olguin’s liability will be whether Jennifer Arandia acted in the course and scope of her employment. Mr. Hankey denies vicarious liability. Mr. Hankey testified that after his breakup with Olguin in April 2022, he couldn’t recall whether the cat Chicken remained at the house and he didn’t know if Jennifer would take care of the cat. (Hankey Depo. 57:2-23.) Hankey denied knowing if Jennifer (or Blenda Arandia, Defendant Jennifer’s sister and co-live-in housekeeper) would take care or feed Chicken, and denied knowing if there was a litter box in April or May of 2022 at his Malibu home. (Hankey Depo. 57:18—58:20.) Hankey also denied knowing if Jennifer would care for the cat Chicken while at his home. (Hankey Depo. 59:6-9.) However, Mr. Hankey has claimed that he and his children, including Sophia, cared for the household pets rather than his domestic staff. (Hankey Depo 107:13-114:10.) Since Sophia lived at the house, she would likely be aware of Jennifer Arandia’s duties, if any, regarding the pets. (Mr. Hankey Decl., ¶ 4.) At deposition, Sophia’s nanny Desirea Rios testified that Sophia had Chicken sleep in Sophia’s bedroom and that staff moved the litter box into Sophia’s bedroom. (Desirea Depo 68:13-25; 85: 15-19.) Since Sophia lived at the Hankey residence at the leading up to the accident, Sophia will likely have relevant testimony concerning whether Chicken resided at the house in Spring 2022, Mr. Hankey’s knowledge thereof, as well as the pet care duties of Jennifer and other employees both at and away from Hankey’s home. Thus, Sophia’s testimony will help establish whether Jennifer Arandia was transporting Chicken at the time of the collision pursuant to Mr. Hankey’s request and/or as part of her regular duties.

The Court is inclined to impose protective orders concerning Sophia's deposition. The Court will permit the deposition to be conducted remotely or at defense counsel's office, at

times convenient to Sophia and her parents, and for a maximum of two hours not including any necessary breaks.

Accordingly, the motion is GRANTED as to Ms. Fernandez and DENIED as to Sophia Hankey. Regarding Sophia's deposition, the Court imposes a protective order as discussed above. Sophia's deposition is to take place at a mutually agreeable time and place within 20 days. In light of the mixed success of the motion, the Court will impose sanctions in the lesser amount of \$2,500.00 against Plaintiffs' counsel of record. Sanctions are payable to Defendants/Non-parties' counsel of record within 30 days.